

Gender Identity Rights in Schools:

Under Title IX, Public schools are required to address students by their preferred name and pronouns.

Information from | TransNebraska, a project of the American Civil Liberty Union Omaha Public Schools

According to OPS, a transgender student's identity is confidential, and will only be shared with school personnel on a need-to-know basis.



According to OPS, students have the right to use locker rooms/restrooms that conform with their gender identity.



Infographic by | Amber Roth

Local school districts clash on gender identity

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Co-Editor in Chief

School districts across the Omaha metro have varied policies regarding gender identity. While most districts in the metro don't have a formal policy, Omaha, Bellevue and Gretna Public Schools have policies set in place regarding gender identity. GPS's Parental Involvement Policy which was reaffirmed earlier this year by the school board, will require parental consent before staff can ask or call students by a preferred name or pronoun. The Orator spoke with a

few students from Gretna, and they all expressed that schools should respect students' wishes on how they are identified. "If that's something the student wants, then the teachers should allow that," Gretna sophomore Makaila Wadsworth said. On the other hand, OPS and BPS has enacted anti-discrimination policies that specifically address the issue of gender identity in the classroom. BPS was the first do so in 2015 and OPS followed with their own policy in 2017. Both districts have stated they will refer to students by their preferred named and pronouns. They

will also allow students to use locker rooms and bathrooms that conform to their gender identity. However, the American Civil Liberties Union of Nebraska stated parents do have the authority on what their child can be called in schools. "The Family Educational Rights and Privacy Act says that parents have the right to know everything about their kids and review all records and documentation related to their children," ACLU of NE spokesperson Sam Petto said. "Parents are the ultimate deciders regarding their children, and a parent who refuses to allow a

school to use certain names or pronouns has the authority to do so." However, Title IX still protects students from discrimination by other students and staff members "Title IX says schools cannot discriminate based on sexual orientation and gender so the school should not be engaging in discriminatory behavior, once staff learns a student is trans, gender nonconforming or nonbinary." Petto said. Elkhorn, Millard, Papillion La Vista, Ralson and Westside school districts have stated they do not have a formal policy regarding transgender stu-

dents and how to address their gender identity. Some said they would work with students on an individual basis to respect their gender identity. Amid a nationwide debate on how to handle gender identity, Nebraska Attorney General Doug Peterson joined 19 other states in a lawsuit earlier this year against the Biden Administration for their interpretation of anti-discrimination laws. The attorney generals cited a fact sheet released by the Department of Education that stated misgendering someone could be grounds for a federal discrimination investiga-

tion. "The guidance purports [claims] to resolve highly controversial and localized issues such as whether schools must allow biological males to compete on girls' sports teams, whether employers and schools may maintain sex-separated showers and locker rooms, and whether individuals may be compelled to use another person's preferred pronouns," Peterson said. "The agencies have no authority to unilaterally resolve these sensitive questions, let alone to do so without providing the public with notice and an opportunity to comment."



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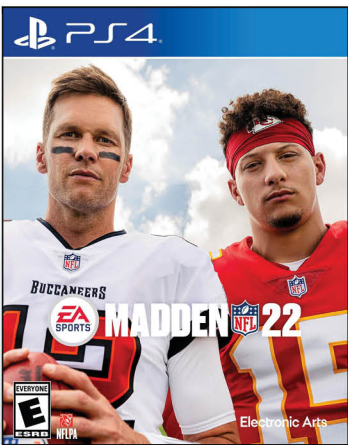
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